

# HOUSE . . . . . No. 5577

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## The Commonwealth of Massachusetts

PRESENTED BY:

***Donald R. Berthiaume, Jr. and Peter J. Durant***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the department of public works in the town of Barre.

PETITION OF:

| NAME:                            | DISTRICT/ADDRESS:    | DATE ADDED:     |
|----------------------------------|----------------------|-----------------|
| <i>Donald R. Berthiaume, Jr.</i> | <i>5th Worcester</i> | <i>7/1/2026</i> |

# HOUSE . . . . . No. 5577

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By Representative Berthiaume of Spencer and Senator Durant, a joint petition (accompanied by bill, House, No. 5577) of Donald R. Berthiaume, Jr. (by vote of the town) relative to the department of public works in the town of Barre. Municipalities and Regional Government.  
[Local Approval Received.]

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to the department of public works in the town of Barre.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 56 of the Acts of 1988 is hereby repealed and the public works  
2      commission established by said act is hereby abolished.

3           SECTION 2. There is hereby established in the Town of Barre a Department of Public  
4      Works, hereinafter called the "Department". Said Department shall have all the powers and  
5      duties previously vested in or exercised by and composed of the highway department, water  
6      department, sewer department and the parks and recreation department.

7           SECTION 3. The department shall be supervised by a superintendent appointed by the  
8      selectboard, in consultation with a recommendation by the town administrator, subject to the by-  
9      laws of the town that provide for the appointment of officers. The town administrator in  
10     consultation with select board may establish an employment contract with the superintendent for  
11     salary, fringe benefits and other conditions of employment, including, but not limited to,

12 severance pay, reimbursement for expenses incurred in the performance of the duties of office,  
13 liability insurance and conditions of discipline, termination, dismissal, reappointment,  
14 performance standards and leave. The superintendent shall hold no other elective or appointive  
15 office in the town without approval from the select board and shall not be engaged in any other  
16 business that would constitute a conflict of interest as defined by Massachusetts General Laws.  
17 The superintendent shall report to the town administrator as to the doings of the department at  
18 such times as the town administrator may require.

19 SECTION 4. The superintendent shall exercise and perform, under the direction and  
20 supervision of the town administrator, all of the powers, rights and duties to be exercised by the  
21 department under this act, and the superintendent shall recommend for appointment such  
22 subordinate employees as may be necessary to operate the department, subject to approval by the  
23 town administrator. The compensation of any such subordinate employees shall be established  
24 pursuant to the personnel policies and practices, rules and regulations of the town and any  
25 applicable collective bargaining agreements.

26 SECTION 5. No contracts or liabilities in force upon the effective date of this act shall be  
27 affected by the repeal of chapter 56 of the acts of 1988, and the department of public works and  
28 the superintendent of public works created in this act shall in all respects be the lawful successor  
29 of the offices and departments that were abolished by the repeal of said chapter 56. All records,  
30 property and equipment of any office, department or part thereof assigned under said chapter 56  
31 shall, by operation of law, be assigned to the department of public works and the superintendent  
32 of public works.

33 SECTION 6. This act shall take effect upon passage.